

Amendment No. 1 to SB0714

White
Signature of Sponsor

AMEND Senate Bill No. 714

House Bill No. 662*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 1, Part 6, is amended by adding the following as a new section:

49-1-621. State interventions for certain underperforming school districts.

(a) The commissioner of education may take one (1) or more of the intervention actions identified in subsection (b) for an LEA that served a student population of which fifty percent (50%) or more of the students:

(1) Were economically disadvantaged, as reported in the state report card most recently issued by the department of education; and

(2) Did not meet grade-level expectations in mathematics and English language arts on the most recently administered Tennessee comprehensive assessment program tests, including end-of-course examinations.

(b) The commissioner may implement one (1) or more of the following intervention actions for an LEA described in subsection (a):

(1) Recommend to the state board of education that the director of schools for the LEA be replaced;

(2) Recommend to the state board that some or all of the local board of education members for the LEA be replaced; and

(3) Recommend to the Tennessee public charter school commission that one (1) or more of the existing public schools in the LEA be converted to a public charter school pursuant to the process established in § 49-13-146.

(c) If the commissioner elects not to take one (1) or more of the intervention actions described in subsection (b), then the commissioner shall report the reason for the commissioner's decision to the state board of education and to the education committee of the senate and the committee of the house of representatives having jurisdiction over the performance goals and assessment of the education being provided in this state's kindergarten through grade twelve (K-12) public schools.

(d) If the state board concurs with a recommendation made by the commissioner pursuant to subsection (b) to remove some or all of the local board of education members or the director of schools, or both, for an LEA described in subsection (a), then the commissioner shall order the removal of some or all of the local board of education members or the director of schools, or both, and shall declare a vacancy in the office. Vacancies on the local board of education must be filled by the local legislative body until the next general election for which candidates may qualify and for which a candidate so elected qualifies to hold the office, or for the remainder of the term if no general election occurs during the remainder of the term. Vacancies on the local board of education for a special school district must be filled by the remaining members of the board. If all members of a local board of education for a special school district are removed, then the commissioner shall appoint three (3) residents of the district to serve on the board, and the three (3) appointed members may appoint residents of the district to fill the remaining vacancies. A person selected to fill a vacancy on a local board of education serves the remainder of the term. Vacancies in the office of a director of schools must be filled in accordance with § 49-2-203. A member of a local board of education who is removed from office pursuant to this section is ineligible for election to the office for the remainder of their term and for one (1) full term thereafter. A director of schools who is removed from office pursuant to this section is ineligible for appointment to the office for the remainder of their contract term and for four (4) years thereafter.

(e) An appeal of the decision to remove a director of schools or local board of education member pursuant to this section must be made to the three-judge panel created in title 20, chapter 18. The three-judge panel's review is confined to whether or not the decision was made in accordance with the procedures authorized in this section.

(f) To the extent any other provisions of this or any other title conflict with this section, this section supersedes such provisions of law to the extent of the conflict for the period of time for which an LEA described in subsection (a) is subject to one (1) or more of the intervention actions and corresponding processes described in this section.

SECTION 2. Tennessee Code Annotated, Section 49-2-203(a)(13), is amended by adding the following as new subdivisions:

(D) If the mayor of a county or municipality for an LEA finds that the school board for the LEA has employed three (3) or more directors of schools during the three (3) immediately preceding years and does not have a director of schools employed on a basis other than interim, then the mayor may recommend that the local legislative body employ a director of schools for the LEA under a written contract of up to four (4) years' duration, which may be renewed by the school board in the same manner as if the school board employed the director of schools. A director of schools employed for an LEA by a local legislative body pursuant to this subdivision (a)(13)(D) has the same powers and duties as a director of schools employed by a school board;

(E)

(i) If the LEA is subject to one (1) or more of the intervention actions described in § 49-1-621(b), and the commissioner of education has recommended to the state board of education that the director of schools be replaced and the state board has concurred with the commissioner's recommendation, then the director of schools shall be removed from office;

(ii) A removal from office pursuant to § 49-1-621 is a removal for cause, immediately terminates the director of school's contract with the school board,

and does not require any prior written notice or any formal action or vote by the school board in order to take effect;

(iii) A director of schools who is removed from office pursuant to § 49-1-621 forfeits all compensation due under the director's contract of employment with the school board beginning on the date of the director's removal. The director may be compensated for actual services performed by the director in the director's official capacity before the date of the director's removal. A director of schools who is removed from office pursuant to § 49-1-621 must not receive any compensation that is payable only on the director's separation from employment;

SECTION 3. Tennessee Code Annotated, Section 49-6-2602(3)(C), is amended by adding the following as a new subdivision:

(iii) Is zoned to attend a school in an LEA described in § 49-1-621(a); and

SECTION 4. Tennessee Code Annotated, Section 49-6-2602(3), is amended by deleting subdivision (D) and substituting instead the following:

(D) Except for a student who is zoned to attend a school in an LEA described in § 49-1-621(a), is a member of a household with an annual income for the previous year that does not exceed twice the federal income eligibility guidelines for free lunch;

SECTION 5. Tennessee Code Annotated, Section 49-6-2603(a), is amended by designating the existing language of subdivision (5) as subdivision (5)(A) and adding the following as a new subdivision (5)(B):

(B) Subdivision (5)(A) does not apply to an eligible student who is zoned to attend a school in an LEA described in § 49-1-621(a). Notwithstanding this part to the contrary, if the LEA in which the eligible student is zoned to attend a school met the description in § 49-1-621(a) at the time the parent of the eligible student or the eligible student, as applicable, submitted an application to participate in the program, then the student is not required to verify the student's household income for any year for which

the student participates in the program, even if the LEA in which the student is zoned to attend a school no longer meets the description in § 49-1-621(a).

SECTION 6. Tennessee Code Annotated, Section 49-6-2603, is amended by deleting the language "as applicable" in subdivision (d)(2) and substituting instead "as applicable, who is required to verify that the participating student's household income meets the requirements of § 49-6-2602(3)(D)" and by deleting the language "as applicable," wherever it appears in subdivision (f)(2) and substituting instead "as applicable, who is required to verify that the participating student's household income meets the requirements of § 49-6-2602(3)(D)".

SECTION 7. Tennessee Code Annotated, Section 49-6-2604(a), is amended by deleting subdivision (6) and substituting instead the following:

(6) An income verification process for a parent of a participating student who is seventeen (17) years of age or younger, or a participating student who has reached eighteen (18) years of age, as applicable, who is required to verify that the participating student's household income meets the requirements of § 49-6-2602(3)(D) to verify the participating student's household income.

SECTION 8. Tennessee Code Annotated, Section 49-13-105(a), is amended by deleting the first two sentences of the subsection and substituting:

There is established the Tennessee public charter school commission as an independent state entity for the purpose of serving as a public charter school authorizer and the LEA for any public charter school it authorizes. The commission has the authority to authorize public charter schools on appeal of a local board of education's decision to deny a public charter school application and to directly authorize public charter schools as provided in this chapter.

SECTION 9. Tennessee Code Annotated, Section 49-13-106(i), is amended by adding the following as a new subdivision:

(3) If a sponsor seeks to establish a new public charter school in an LEA described in § 49-1-621(a), then the sponsor may apply to the local board of education or directly to the commission for authorization pursuant to § 49-13-146, if applicable.

SECTION 10. Tennessee Code Annotated, Section 49-13-106(j), is amended by deleting subdivision (1) and substituting instead the following:

(1) If a sponsor seeks to convert an existing public school to a public charter school, then the sponsor must apply to the local board of education. This subdivision (j)(1) does not apply if the existing public school has entered the achievement school district pursuant to § 49-1-614, or if the commissioner of education has recommended that one (1) or more of the public schools managed and controlled by the local board of education for an LEA described in § 49-1-621(a) be converted to a public charter school pursuant to the process established in § 49-13-146.

SECTION 11. Tennessee Code Annotated, Title 49, Chapter 13, is amended by adding the following as a new section:

49-13-146. Direct authorization by the Tennessee public charter school commission for charter schools applying in certain underperforming school districts.

(a) If a sponsor seeks to establish a new public charter school in an LEA described in § 49-1-621(a), then the sponsor may apply directly to the commission for authorization. If a sponsor applies directly to the commission, then the application process must be conducted in accordance with § 49-13-107 and with the following:

(1) The commission shall rule by resolution, at a regularly or specially called meeting, to approve or deny the public charter school application no later than ninety (90) days after the date on which the commission received the completed application. If the commission fails to approve or deny a public charter school application within ninety (90) days, then the public charter school application is deemed approved;

(2) If the commission denies the application, then the grounds for denial must be stated in writing and must specify objective reasons for the denial. Upon receipt of the grounds for denial, the sponsor has thirty (30) days to submit an amended application to correct any deficiencies. Upon receipt of the amended application, the commission has sixty (60) days to deny or approve the amended application. If the commission fails to approve or deny the amended application within sixty (60) days, then the amended application is deemed approved;

(3) If the commission approves the application, then the commission is the authorizer and LEA for that public charter school; and

(4) The commission's decision is final and not subject to appeal.

(b) If the commissioner of education recommends that one (1) or more of the public schools in an LEA described in § 49-1-621(a) be converted to a public charter school pursuant to § 49-1-621(b), then a sponsor who seeks to convert a public school for which the commissioner recommends conversion to a public charter school may apply directly to the commission. If a sponsor applies directly to the commission for conversion, then the application process must be conducted in accordance with § 49-13-107 and with the process and timelines established in subdivisions (a)(1)-(4).

(c) If the commission approves a sponsor's application for conversion, then:

(1) The conversion must occur at the beginning of a school year and the conversion public charter school must comply with this chapter;

(2) A teacher or administrator of the conversion public charter school must be allowed to transfer into vacant positions in other schools in the LEA for which they are certified before the LEA hires new personnel to fill the vacant positions. Personnel who transfer into vacant positions in other schools in the LEA must not suffer any impairment, interruption, or diminution of the rights and privileges of a then-existing teacher or administrator, and the rights and privileges must continue without impairment, interruption, or diminution with the

local board of education. For purposes of this subdivision (c)(2), "rights and privileges" include, but are not limited to, salary, pension, retirement benefits, sick leave accumulation, tenure, seniority, and contract rights with the local board of education. The director of schools may assign teachers or administrators in a conversion public charter school to vacant positions in other schools in the LEA;

(3) An enrollment preference must be given to students who reside in the former school zone of the converted public school. The enrollment preference for students who reside in the former attendance area excludes the students from entering into an enrollment lottery conducted pursuant to subdivision (c)(4);

(4) The conversion public charter school may enroll students who reside in other school zones after students residing within the school zone of the converted public school have had the opportunity to enroll, but only if there is program, class, grade level, and building capacity to serve the out-of-zone students. If applications by out-of-zone students exceed the conversion public charter school's capacity, then enrollment of out-of-zone students must be determined based on the results of an enrollment lottery. Out-of-zone students who attended the school during the previous school year and the siblings of students who attended the school may be given preference in enrollment;

(5) A parent of a child who is enrolled at the conversion public school may enroll the parent's child in another public school without penalty; and

(6) The conversion public charter school shall occupy the converted public school's existing facility.

(d) This section does not require the commission to approve an application to establish a new public charter school in an LEA described in § 49-1-621(a) or to approve an application for conversion of one (1) or more existing public schools in an LEA described in § 49-1-621(a) for which the commissioner recommends conversion.

SECTION 12. Sections 3-7 of this act take effect July 1, 2025, the public welfare requiring it, and apply to the 2025-2026 school year and each school year thereafter. All other sections of this act take effect upon becoming a law, the public welfare requiring it.